

DATA SERVICES AGREEMENT

Agreement No. DSA-2025-0041

Term	Detail
Agreement Number	DSA-2025-0041
Effective Date	January 1, 2025
Initial Term	Three (3) years, expiring December 31, 2027
Auto-Renewal	One (1) year unless 90 days prior written notice
Annual Minimum Commitment	USD \$360,000
Governing Law	State of Maryland

This Data Services Agreement ("Agreement") is entered into as of January 1, 2025, by and between Nexacore Inc., a Delaware corporation with its principal place of business at 100 Innovation Drive, Boston, MA 02101 ("Client"), and VendorA Analytics LLC, a Florida limited liability company with its principal place of business at 500 Commerce Blvd, Chicago, IL 60601 ("Provider").

1. DEFINITIONS

As used in this Agreement: (a) 'Agreement' means this Data Services Agreement, including all exhibits and statements of work incorporated herein by reference; (b) 'Client Data' means any data, information, or materials provided by Client to Provider; (c) 'Confidential Information' means any non-public information designated as confidential or reasonably understood as such; (d) 'Deliverables' means the data files and outputs specified in Exhibit A; (e) 'Fees' means the compensation set forth in Section 3; (f) 'Intellectual Property' means all patents, copyrights, trademarks, trade secrets, and other proprietary rights; (g) 'SLA' means the service level agreement governing delivery timeliness and quality; (h) 'Term' means the Initial Term and any applicable Renewal Terms.

2. SERVICES

2.1 Provider agrees to deliver the Deliverables specified in Exhibit A in accordance with the delivery schedule, format specifications, and quality standards set forth therein. Provider shall perform all services in a professional and workmanlike manner consistent with industry standards and in compliance with all applicable laws and regulations.

2.2 The parties may from time to time execute additional Statements of Work referencing this Agreement, each of which upon mutual execution shall be incorporated herein by reference. In the event of a conflict between any Statement of Work and the terms of this Agreement, the terms of this Agreement shall control unless the Statement of Work expressly states otherwise.

2.3 Provider shall assign qualified personnel to perform the services and shall not

substitute or replace key personnel without providing Client at least fourteen (14) days prior written notice and receiving Client's written approval, which shall not be unreasonably withheld.

2. SERVICES (CONTINUED) — EXHIBIT A: DELIVERABLES SCHEDULE

Dataset Name	Delivery Frequency	Format	SLA
Consumer Segmentation Feed	Monthly	CSV + JSON	5th business day following month
Identity Linkage File	Bi-weekly	Parquet	3rd business day after period close
Household Composition Data	Quarterly	CSV	15th calendar day after quarter end
Digital Propensity Scores	Weekly	JSON	Every Monday by 6:00 AM ET

3. FEES AND PAYMENT

3.1 Client shall pay Provider an Annual Minimum Commitment of USD \$360,000, payable in equal monthly installments of USD \$30,000, due within thirty (30) days of receipt of Provider's invoice. All invoices shall be submitted electronically to ap@nexacore.com no later than the fifth (5th) business day of each calendar month.

3.2 In addition to the Annual Minimum Commitment, Client shall pay a per-record fee of \$0.0014 for each record delivered in excess of the volume included in the Annual Minimum. Per-record overage charges shall be calculated monthly and invoiced within ten (10) business days of month-end, with payment due thirty (30) days thereafter.

3.3 Amounts not paid within thirty (30) days of the invoice due date shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is less. Client shall reimburse Provider for all reasonable costs of collection, including reasonable attorneys' fees.

4. DATA DELIVERY AND SECURITY

4.1 All Deliverables shall be transmitted to Client via secure SFTP to the designated Nexacore endpoint or to Client's AWS S3 bucket (s3://nexacore-vendor-ingest/datastream/) as specified in Exhibit B. Provider shall furnish a manifest file with each delivery identifying record counts, file checksums (SHA-256), and the delivery timestamp.

4.2 Provider shall maintain SOC 2 Type II certification throughout the Term and shall provide Client with copies of its annual SOC 2 reports upon written request. Provider shall implement and maintain commercially reasonable administrative, technical, and physical safeguards to protect Client Data and Deliverables against unauthorized access or disclosure.

5. INTELLECTUAL PROPERTY

5.1 Client owns all Client Data and any derivatives thereof. Provider shall have no ownership interest in Client Data and shall use it solely to perform its obligations hereunder. Provider retains ownership of all pre-existing intellectual property and of any general methodologies, tools, or know-how developed independently of this Agreement.

5.2 Provider hereby grants Client a non-exclusive, non-transferable license to use the Deliverables for Client's internal business purposes and for providing data analytics services to Client's direct advertising clients, subject to the restrictions set forth herein.

6. CONFIDENTIALITY

6.1 Each party agrees to hold in strict confidence all Confidential Information of the other party, to use such information solely for the purposes of this Agreement, and to disclose it only to employees or contractors with a need to know and who are bound by confidentiality obligations no less restrictive than those herein.

6.2 The confidentiality obligations set forth in this Section shall survive the expiration or termination of this Agreement for a period of two (2) years. Neither party shall be obligated to maintain confidentiality with respect to information that: (a) is or becomes publicly available without breach of this Agreement; (b) was independently developed without reference to the disclosing party's information; or (c) is required to be disclosed by law or court order, provided the receiving party gives prompt prior written notice.

7. REPRESENTATIONS AND WARRANTIES

7.1 Provider represents and warrants that: (a) it has the full right, power, and authority to enter into this Agreement and to grant the licenses herein; (b) the Deliverables do not infringe the intellectual property rights of any third party; (c) all data included in the Deliverables was collected, processed, and transferred in compliance with all applicable privacy laws, including the California Consumer Privacy Act (CCPA) and applicable GDPR requirements; and (d) the Deliverables will conform to the specifications set forth in Exhibit A.

7.2 Client represents and warrants that: (a) it has the full right, power, and authority to enter into this Agreement; (b) it will use the Deliverables solely in accordance with the license granted herein and all applicable laws; and (c) it will maintain appropriate security controls to protect the Deliverables from unauthorized access or disclosure.

8. INDEMNIFICATION

8.1 Each party ("Indemnifying Party") shall defend, indemnify, and hold harmless the other party and its officers, directors, employees, and agents ("Indemnified Party") from and against any third-party claims, losses, damages, liabilities, and expenses (including reasonable attorneys' fees) arising from: (a) the Indemnifying Party's material breach of this Agreement; (b) the Indemnifying Party's negligence or willful misconduct; or (c) in the case of Provider, any claim that the Deliverables infringe any third-party intellectual property rights.

8.2 The Indemnified Party shall: (a) promptly notify the Indemnifying Party in writing of any claim; (b) give the Indemnifying Party sole control of the defense and settlement; and (c) provide reasonable cooperation. The Indemnifying Party shall not settle any claim that imposes obligations on the Indemnified Party without its prior written consent.

9. LIMITATION OF LIABILITY

9.1 NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR DATA, ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF THE FORM OF ACTION AND WHETHER SUCH DAMAGES WERE FORESEEABLE OR SUCH PARTY WAS ADVISED OF THEIR POSSIBILITY.

9.2 EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO PROVIDER DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.3 The limitations in Sections 9.1 and 9.2 shall not apply to: (a) either party's indemnification obligations under Section 8; (b) either party's breach of Section 6 (Confidentiality); or (c) fraud or willful misconduct.

10. TERM AND TERMINATION

10.1 This Agreement shall commence on the Effective Date and continue for the Initial Term of three (3) years. Thereafter, this Agreement shall automatically renew for successive one-year terms unless either party provides at least ninety (90) days prior written notice of non-renewal before the end of the then-current term.

10.2 Either party may terminate this Agreement for convenience upon one hundred eighty (180) days prior written notice to the other party. Client shall pay all undisputed fees accrued through the effective date of termination.

10.3 Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice describing the breach in reasonable detail.

10.4 Upon termination or expiration: (a) each party shall promptly return or destroy the other party's Confidential Information; (b) Provider shall deliver a final data extract within thirty (30) days; and (c) Client shall pay all undisputed amounts owed.

11. GENERAL PROVISIONS

11.1 Notices. All notices under this Agreement shall be in writing and delivered by: (a) overnight courier to Nexacore Inc., Attention: General Counsel, 7001 Columbia Gateway Drive, Columbia, MD 21046; or to VendorA Analytics LLC, Attention: Legal Department, 500 Commerce Blvd, Chicago, IL 60601; or (b) email to legal@nexacore.com or legal@datastreamanalytics.com with confirmation of receipt.

11.2 Assignment. Neither party may assign this Agreement or any rights or obligations hereunder without the other party's prior written consent, which shall not be unreasonably withheld. Notwithstanding the foregoing, either party may assign this Agreement without consent in connection with a merger, acquisition, or sale of all or substantially all of its assets, provided the assignee assumes all obligations hereunder.

11.3 Entire Agreement; Amendment. This Agreement, including all exhibits, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, representations, and understandings. This Agreement may only be amended by a written instrument signed by both parties.

11.4 Force Majeure. Neither party shall be liable for delay or failure to perform resulting from causes beyond its reasonable control, including acts of God, natural disasters, pandemics, governmental actions, or internet or telecommunications failures, provided the affected party gives prompt written notice and uses reasonable efforts to mitigate the impact.

11.5 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be an original and all of which together shall constitute one instrument. Electronic signatures shall be deemed valid and binding to the same extent as original signatures.

11.6 Governing Law; Disputes. This Agreement shall be governed by the laws of the State of Maryland, without regard to conflict of law principles. Any dispute shall first be subject to good-faith negotiation for thirty (30) days, after which either party may pursue its remedies in courts of competent jurisdiction in the State of Maryland.

FOR MERKLE INC.

Signature: _____

Name: _____

Title: _____

Date: _____

FOR DATASTREAM ANALYTICS LLC

Signature: _____

Name: _____

Title: _____

Date: _____